4.12.2 Competitive Range Protest

Proposers excluded from a round may submit a Written protest of Competitive Range. Protests must:

1. Be emailed to the SPC;
2. Reference the OregonBuys bid number S-10700-00007215;
3. Identify Proposer's name and contact information;
4. Be sent by an authorized representative
5. State the reason for the protest; and
6. Be received within seven calendar days after issuance of the Notice of the Competitive Range unless a different due date and time is specified in such notice.

DAS PS will address all protests within a reasonable time and will issue a Written decision to the respective Proposer. Protests that do not include the required information may not be considered by DAS PS.

4.13 RESERVED

SECTION 5: AWARD AND NEGOTIATION

5.1 AWARD NOTIFICATION PROCESS

5.1.1 Award Consideration

DAS PS, if it awards a Price Agreement, will award a Price Agreement to the highest-ranking Responsible Proposer(s) based upon the scoring methodology and process described in Section 4. DAS PS may award less than the full Scope of Work described in this RFP.

5.1.2 Intent to Award Notice

DAS PS will notify all Proposers in Writing that DAS PS intends to award a Price Agreement to the selected Proposer(s) subject to successful negotiation of any negotiable provisions.

5.2 INTENT TO AWARD PROTEST

5.2.1 Protest Submission

An Affected Proposer will have seven calendar days from the date of the Intent to Award notice to file a Written protest.

Proposer is an Affected Proposer only if Proposer would be eligible for Price Agreement award in the event the protest was successful and is protesting for one or more of the following reasons as specified in ORS 279B.410:

- All higher ranked Proposals are non-Responsive.
- DAS PS has failed to conduct an evaluation of Proposals in accordance with the criteria or process described in the RFP.
- DAS PS abused its discretion in rejecting the protestor's Proposal as non-Responsive.

- DAS PS's evaluation of Proposal or determination of award otherwise violates ORS Chapter 279B or ORS Chapter 279A.

If DAS PS receives only one Proposal, DAS PS may dispense with the evaluation process and Intent to Award protest period and proceed with Price Agreement Negotiations and award.

5.2.1.1 Protest Requirements

Protests must:

1. Be delivered to the SPC via email;
2. Reference the OregonBuys bid number S-10700-00007215;
3. Identify Proposer's name and contact information;
4. Be signed by an authorized representative of Proposer;
5. Specify the grounds for the protest; and
6. Be received within seven calendar days of the Intent to Award notice.

5.2.2 Response to Protest

DAS PS will address all timely submitted protests within a reasonable time and will issue a Written decision to the respective Proposer. Protests that do not include the required information may not be considered by DAS PS.

5.3 APPARENT SUCCESSFUL PROPOSER SUBMISSION REQUIREMENTS

Proposer(s) who are selected for a Price Agreement award under this RFP will be required to submit additional information and comply with the following:

5.3.1 Insurance

Prior to award, Proposer shall secure and demonstrate to DAS PS proof of insurance as required in this RFP or as negotiated. Insurance Requirements are found in Exhibit B of Attachment A.

5.3.2 Taxpayer Identification Number

Proposer shall provide its Taxpayer Identification Number (TIN) and backup withholding status on a completed W-9 form when requested by DAS PS or when the backup withholding status or any other relevant information of Proposer has changed since the last submitted W-9 form, if any.

5.3.3 Business Registry

If selected for award, Proposer shall be duly authorized by the State of Oregon to transact business in the State of Oregon before executing the Price Agreement. Visit http://sos.oregon.gov/business/pages/register.aspx for Oregon Business Registry information.

5.3.4 Responsibility Inquiry

Prior to award, Proposer shall be required to complete and submit **Attachment G — Responsibility Inquiry.**

5.3.5 Pay Equity Certification

If selected for award and the Price Agreement's anticipated value exceeds $500,000 and Proposer employs 50 or more full-time workers, Proposer shall submit to DAS PS a true and correct copy of an unexpired Pay Equity Compliance Certificate, issued to the Proposer by the Oregon Department of Administrative Services. For instructions on how to obtain the Certificate, visit https://www.oregon.gov/das/Procurement/Pages/PayEquity.aspx.

ORS 279B.110(2)(f) requires that Proposer provide this prior to execution of the Price Agreement.

5.3.6 Nondiscrimination in Employment

As a condition of receiving the award of a Price Agreement under this RFP, Proposer must certify by its Signature on Attachment C - Proposer Information and Certification Sheet, in accordance with ORS 279A.112, that it has in place a policy and practice of preventing sexual harassment, sexual assault, and discrimination against employees who are members of a protected class. The policy and practice must include giving employees a written notice that the policy both prohibits, and prescribes disciplinary measures for, conduct that constitutes sexual harassment, sexual assault, or unlawful discrimination.

5.3.7 RESERVED

5.4 PRICE AGREEMENT NEGOTIATION

5.4.1 Negotiation

After selection of one or more successful Proposers, DAS PS may enter into Price Agreement negotiations with the successful Proposer(s) who offer the range of Goods and Services considered most advantageous to the State and ORCPP members. By submitting a Proposal, Proposer agrees to comply with the requirements of the RFP, including the terms and conditions of the Sample Price Agreement (Attachment A), with the exception of those terms listed below for negotiation.

DAS PS intends to enter into a Price Agreement with the successful Proposer substantially in the form set forth in Attachment A, Sample Price Agreement.

Following the selection of the apparent successful Proposer(s), DAS PS may agree to negotiate changes to the negotiable provisions of the Sample Price Agreement listed below. However, DAS PS is not required to make any changes and many provisions cannot be changed. Proposer is cautioned that the State of Oregon believes modifications to the standard provisions constitute increased risk and increased cost to the State.

Any Proposal that is conditioned upon DAS PS' acceptance of any other terms and conditions may be rejected. Any subsequent negotiated changes are subject to prior approval of the Oregon Department of Justice.

DAS PS is willing to negotiate all items, except those listed below:

- Choice of law
- Choice of venue